

equation. It has next to nothing to do with the free market-place of ideas or the transmission of the people's thoughts and will to the government. It has everything to do with the second side of the equation, that is, with government response to the public will through ordinary commercial regulation. To apply the strictest level of scrutiny to the economically based exemption here is thus remarkable.

I recognize that the underlying cell phone robocall restriction primarily concerns a means of communication. And that fact, as I discuss below, triggers some heightened scrutiny, reflected in an intermediate scrutiny standard. Strict scrutiny and its strong presumption of unconstitutionality, however, have no place here.

The plurality claims that its approach, which categorically applies strict scrutiny to content-based distinctions, will not "affect traditional or ordinary economic regulation of commercial activity." *Ante*, at 620. But how is that so? Much of human life involves activity that takes place through speech. And much regulatory activity turns upon speech content. See, *e. g.*, *Reed*, 576 U. S., at 177–178 (BREYER, J., concurring in judgment) (giving examples). Consider, for example, the regulation of securities sales, drug labeling, food labeling, false advertising, workplace safety warnings, automobile airbag instructions, consumer electronic labels, tax forms, debt collection, and so on. All of those regulations necessarily involve content-based speech distinctions. What are the differences between regulatory programs themselves other than differences based on content? After all, the regulatory spheres in which the Securities and Exchange Commission or the Federal Trade Commission operate are defined by content. Put simply, treating all content-based distinctions on speech as presumptively unconstitutional is unworkable and would obstruct the ordinary workings of democratic governance.

That conclusion is true here notwithstanding the plurality's effort to bring political speech into the First Amend-

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ment analysis. See *ante*, at 619, 636 (characterizing Congress as having “favored debt-collection speech over plaintiffs’ political speech”). It is true that the underlying cell phone robocall restriction generally prohibits political speakers from making robocalls. But that has little to do with the government-debt exception or *its* practical effect. Nor does it justify the application of strict scrutiny.

Consider prescription drug labels, securities forms, and tax statements. A government agency might reasonably specify just what information the form or label must contain and further provide that the form or label may not contain other information (thereby excluding political statements). No one would think that the exclusion of political speech, say, from a drug label, means that courts must examine all other regulatory exceptions with strict scrutiny. Put differently, it is hard to imagine that such exceptions threaten political speech in the marketplace of ideas, or have any significant impact on the free exchange of ideas. To treat those exceptions as presumptively unconstitutional would work a significant transfer of authority from legislatures and agencies to courts, potentially inhibiting the creation of the very government programs for which the people (after debate) have voiced their support, despite those programs’ minimal speech-related harms. See *Sorrell*, 564 U. S., at 584–585 (BREYER, J., dissenting). Given the values at the heart of the First Amendment, see *supra*, at 639–642, that interpretation threatens to stand that Amendment on its head. It could also lead the Court to water down the strict scrutiny standard, which would limit speech protections in situations where strict scrutiny’s strong protections should properly apply. *Reed*, 576 U. S., at 178 (BREYER, J., concurring in judgment).

If, as I have argued, the First Amendment does not support the mechanical conclusion that content discrimination automatically triggers strict scrutiny, what role might content discrimination play? The plurality is correct when it quotes this Court as having said that the government may

not discriminate “in the regulation of expression on the basis of the content of that expression.” *Ante*, at 618 (quoting *Hudgens v. NLRB*, 424 U.S. 507, 520 (1976)). If, however, this Court is to apply the First Amendment consistently with the democratic values embodied within that Amendment, that kind of statement must reflect a rule of thumb applicable only in certain circumstances. See *Reed*, 576 U.S., at 176 (BREYER, J., concurring in judgment); *id.*, at 183 (KAGAN, J., concurring in judgment) (“We can administer our content-regulation doctrine with a dose of common sense, so as to leave standing laws that in no way implicate its intended function”).

Indeed, that must be so given that this Court’s First Amendment jurisprudence itself ties the constitutional protection speech receives to the content or purpose of that speech. The Court has held that entire categories of speech—for example, obscenity, fraud, and speech integral to criminal conduct—are generally unprotected by the First Amendment entirely because of their content. See *Miller v. California*, 413 U.S. 15, 23 (1973) (obscenity); *Virginia Bd. of Pharmacy v. Virginia Citizens Consumer Council, Inc.*, 425 U.S. 748, 771 (1976) (fraud); *Giboney v. Empire Storage & Ice Co.*, 336 U.S. 490, 498 (1949) (speech integral to criminal conduct). As Justice Stevens pointed out, “our entire First Amendment jurisprudence creates a regime based on the content of speech.” *R. A. V. v. St. Paul*, 505 U.S. 377, 420 (1992) (opinion concurring in judgment); see *id.*, at 420–422 (providing examples). Given that this Court looks to the nature and content of speech to determine whether, or to what extent, the First Amendment protects it, it makes little sense to treat *every* content-based distinction Congress has made as presumptively unconstitutional.

Moreover, it is no answer to claim that this Court’s precedents categorically require such an analysis. See *ante*, at 621, n. 5 (plurality opinion). Our First Amendment jurisprudence has always been contextual and has defied straightfor-

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ward reduction to unyielding categorical rules. The idea that broad language in any one case (even *Reed*) has categorically determined how content discrimination should be applied in *every single context* is both wrong and reflects an oversimplification and overreading of our precedent. The diversity of approaches in this very case underscores the point that the law here is far from settled. Indeed, the plurality itself disclaims the idea that its rule would apply to unsettle “traditional or ordinary economic regulation of commercial activity,” indicating that the plurality presumably thinks there are some outer bounds to its broad language. *Ante*, at 620. The question here is whether the Court’s general statements about content discrimination triggering strict scrutiny, including in *Reed*, make sense as applied in *this* context. As I have explained, they do not.

That said, I am not arguing for the abolition of the concept of “content discrimination.” There are times when using content discrimination to trigger scrutiny is eminently reasonable. Specifically, when content-based distinctions are used as a method for suppressing particular viewpoints or threatening the neutrality of a traditional public forum, content discrimination triggering strict scrutiny is generally appropriate. See *Reed*, 576 U. S., at 176 (BREYER, J., concurring in judgment); *id.*, at 182–183 (KAGAN, J., concurring in judgment).

Neither of those situations is present here. Outside of these circumstances, content discrimination can at times help determine the strength of a government justification or identify a potential interference with the free marketplace of ideas. See *id.*, at 176–177 (BREYER, J., concurring in judgment). But, as I have explained, this case is not about protecting the marketplace of ideas. It is not about the formation of public opinion or the transmission of the people’s will to elected representatives. It is fundamentally about a method of regulating debt collection.

III

I would examine the validity of the regulation at issue here using a First Amendment standard that (unlike strict scrutiny) does not strongly presume that a regulation that affects speech is unconstitutional. However, given that the government-debt exception does directly impact a means of communication, the appropriate standard requires a closer look at the restriction than does a traditional “rational basis” test. A proper inquiry should examine the seriousness of the speech-related harm, the importance of countervailing objectives, the likelihood that the restriction will achieve those objectives, and whether there are other, less restrictive ways of doing so. Narrow tailoring in this context, however, does not necessarily require the use of the least-restrictive means of furthering those objectives. Cf. *Ward v. Rock Against Racism*, 491 U.S. 781, 797–799, and n. 6 (1989) (explaining that outside of strict scrutiny review, narrow tailoring does not require the use of least-restrictive-means analysis). That inquiry ultimately evaluates a restriction’s speech-related harms in light of its justifications. We have typically called this approach “intermediate scrutiny,” though we have sometimes referred to it as an assessment of “fit,” sometimes called it “proportionality,” and sometimes just applied it without using a label. See *United States v. Alvarez*, 567 U.S. 709, 730–731 (2012) (BREYER, J., concurring in judgment); *Reed*, 576 U.S., at 179 (same).

Applying this Court’s intermediate scrutiny analysis, I would begin by asking just what the First Amendment harm is here. As JUSTICE KAVANAUGH notes, the government-debt exception provides no basis for undermining the general cell phone robocall restriction. *Ante*, at 622–623. Indeed, looking at the government-debt exception in context, we can see that the practical effect of the exception, taken together with the rest of the statute, is to put *non-*

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government debt collectors at a disadvantage. Their speech operates in the same sphere as government-debt collection speech, communicates comparable messages, and yet does not have the benefit of a particular instrument of communication (robocalls). While this is a speech-related harm, debt-collection speech is both commercial and highly regulated. See Brief for Petitioners 20–21 (describing multiple restrictions imposed by the Fair Debt Collection Practices Act on communications by debt collectors in the course of debt collection). The speech-related harm at issue here—and any related effect on the marketplace of ideas—is modest.

What, then, is the justification for this harm? The purpose of the exception is to further the protection of the public fisc. See *supra*, at 638. That protection is an important governmental interest. Private debt typically involves private funds; public debt typically involves funds that, in principle, belong to all of us, and help to implement numerous governmental policies that the people support.

Finally, is the exception narrowly tailored? Its limited scope shows that it is. Congress has minimized any speech-related harm by tying the exception directly to the Government's interest in preserving the public fisc. The statutory text makes clear that calls will only fall within the bounds of that exception if they are “made *solely* to collect” Government debt. 47 U.S.C. § 227(b)(1)(A)(iii) (emphasis added). Thus, the exception cannot be used to permit communications unrelated or less directly related to that public fiscal interest.

The upshot is that the government-debt exception, taken in context, inflicts some speech-related harm. But the harm, as I have explained, is related not to public efforts to develop ideas or transmit them to the Government, but to the Government's response to those efforts, which here takes the form of highly regulated commercial communications. Moreover, there is an important justification for that harm,

and the exception is narrowly tailored to further that goal. Given those facts, the government-debt exception should survive intermediate First Amendment scrutiny.

IV

For the reasons described above, I would find that the government-debt exception does not violate the First Amendment. A majority of the Court, however, has concluded the contrary. It must thus decide whether that provision is severable from the rest of the statute. As to that question, I agree with JUSTICE KAVANAUGH's conclusion that the provision is severable. Accordingly, I respectfully concur in the judgment with respect to severability and dissent in part.

JUSTICE GORSUCH, with whom JUSTICE THOMAS joins as to Part II, concurring in the judgment in part and dissenting in part.

I agree with JUSTICE KAVANAUGH that the provision of the Telephone Consumer Protection Act before us violates the First Amendment. Respectfully, however, I disagree about why that is so and what remedial consequences should follow.

I

The TCPA is full of regulations on robocalls. The statute limits robocalls to residential landlines, hospitals, emergency numbers, and business lines. The only provision before us today, however, concerns robocalls to cell phones, mobile devices, or “any service for which the called party is charged for the call.” 47 U. S. C. § 227(b)(1)(A)(iii). Before the law's enactment, many cell phone users had to pay for each call, so they suffered not only the pleasure of robocalls, but also the privilege of paying for them. In 1991, Congress sought to address the problem by banning nearly all unsolicited robocalls to cell phones.

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But much has changed since then. Now, cell phone users often pay a flat monthly fee for unlimited minutes, reducing the cost (if not the annoyance) of hearing from robocallers. New weapons in the fight against robocallers have emerged, too—including tools that allow consumers to more easily screen and block unwanted calls. Perhaps in recognition of these changes, Congress relaxed the ban on cell phone robocallers in 2015. Today, unsolicited calls are permitted if they are “made solely to collect a debt owed to or guaranteed by the United States.” *Ibid.*

That leaves robocallers no shortage of material. The government backs millions upon millions of loans—student loans, home mortgages, veterans’ loans, farm loans, business loans. When it comes to student loans alone, the government guarantees more than \$150 billion in private loans involving over 7 million individuals. And, to be clear, it’s not just the government that’s allowed to call about these loans. Private lenders and debt collectors are free to send in the robots too, so long as the debt at issue is ultimately guaranteed by the government.

Today’s plaintiffs wish to use robocalls for something different: to campaign and solicit donations for political causes. The plaintiffs allege that the law’s continuing ban on calls like theirs violates the First Amendment, and on the main points of their argument the parties agree. First, no one doubts the TCPA regulates speech. Second, everyone accepts that restrictions on speech—no matter how evenhanded—must be justified by at least a “‘significant governmental interest.’” *Ward v. Rock Against Racism*, 491 U. S. 781, 791 (1989). And, third, the parties agree that laws that go further by regulating speech on the basis of content invite still greater scrutiny. When the government seeks to censor speech based on its content, favoring certain voices and punishing others, its restrictions must satisfy “strict scrutiny”—meaning they must be justified by interests that are “compelling,” not just significant. After all, a

constitutional right would hardly be needed to protect popular speakers; the First Amendment does its real work in giving voice to those a majority would silence. See *McCullen v. Coakley*, 573 U. S. 464, 477–478 (2014); but see *ante*, at 642 (BREYER, J., concurring in judgment with respect to severability and dissenting in part) (seeking to overturn precedent and allow the government sometimes to impose content-based restrictions to “respon[d] to the public will”).

In my view, the TCPA’s rule against cellphone robocalls is a content-based restriction that fails strict scrutiny. The statute is content-based because it allows speech on a subject the government favors (collecting its debts) while banning speech on other disfavored subjects (including political matters). Cf. *ante*, at 646–648 (opinion of BREYER, J.) (mistakenly characterizing the content discrimination as “not about” political activities). The statute fails strict scrutiny because the government offers no compelling justification for its prohibition against the plaintiffs’ political speech. In fact, the government does not dispute that, if strict scrutiny applies, its law must fall.

It’s easy enough to see why the government makes no effort to satisfy strict scrutiny. Now that most cell phone plans do not charge by the call, the only justification the government cites for its robocall ban is its interest in protecting consumer privacy. No one questions that protecting consumer privacy qualifies as a legitimate and “genuine” interest for the government to pursue. *Ante*, at 614–615, 622. But before the government may censor the plaintiffs’ speech based on its content, it must point to a *compelling* interest. And if the government thinks consumer privacy interests are insufficient to overcome its interest in collecting debts, it’s hard to see how the government might invoke consumer privacy interests to justify banning private political speech. Especially when consumers seem to find debt collection efforts particularly intrusive: Year after year, the Federal Trade

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Commission receives more complaints about the debt collection industry than any other. The nature and breadth of the law's exception calls into question the necessity of its rule.

Much precedent supports this course. As this Court has long explained, a law's failure to address a wide swath of conduct implicating its supposed concern "diminish[es] the credibility of the government's [stated] rationale for [its] restrict[ion]." *City of Ladue v. Gilleo*, 512 U. S. 43, 52 (1994). Or, as the Court has elsewhere put it, the compellingness of the government's putative interest is undermined when its law "leaves appreciable damage to [the] supposedly vital interest unprohibited." *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520, 547 (1993) (internal quotation marks omitted); see also *Gonzales v. O Centro Espírita Beneficente União do Vegetal*, 546 U. S. 418, 433 (2006). The insight is simple: A law's failure to cover "significant tracts of conduct implicating [its] putatively compelling interes[t] can raise . . . the inference that the . . . claimed interest isn't . . . so compelling after all." *Yellowbear v. Lampert*, 741 F. 3d 48, 60 (CA10 2014).

That's not to say the inference is irrebuttable. The government might, for example, show that the apparent inconsistency in its law is justified by some qualitative or quantitative difference between the speech it favors and the speech it disfavors. See *id.*, at 61. So if debt collection robocalls were less invasive of consumer privacy than other kinds of robocalls, or if they were inherently rare, an exception permitting debt collection calls might not undermine the government's claimed interest in banning other calls. But the government, a party with every incentive and ample resources, has not even tried to suggest conditions like those are present here, and understandably so: The government-debt exception allows a seemingly *infinite* number of robocalls of the type consumers appear to find *most* invasive.

II

With a First Amendment violation proven, the question turns to remedy. Because the challenged robocall ban unconstitutionally infringes on their speech, I would hold that the plaintiffs are entitled to an injunction preventing its enforcement against them. This is the traditional remedy for proven violations of legal rights likely to work irreparable injury in the future. Preventing the law's enforcement against the plaintiffs would fully address their injury. And going this far, but no further, would avoid "short circuit[ing] the democratic process" by interfering with the work of Congress any more than necessary. *Washington State Grange v. Washington State Republican Party*, 552 U. S. 442, 451 (2008).

JUSTICE KAVANAUGH's opinion pursues a different course. Invoking "severability doctrine," it declares the government-debt exception void and severs it from the statute. As revised by today's decision, the law prohibits nearly all robocalls to cell phones, just as it did back in 1991. In support of this remedy, we are asked to consider cases involving equal protection violations, where courts have sometimes solved the problem of unequal treatment by leveling others "down" to the plaintiff's status rather than by leveling the plaintiff "up" to the status others enjoy.

I am doubtful of our authority to rewrite the law in this way. Many have questioned the propriety of modern severability doctrine,* and today's case illustrates some of the reasons why. To start, it's hard to see how today's use of severability doctrine qualifies as a remedy at all: The plaintiffs have not challenged the government-debt exception, they

*See, e. g., *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U. S. 197, 251–261 (2020) (THOMAS, J., concurring in part and dissenting in part); Harrison, *Severability, Remedies, and Constitutional Adjudication*, 83 Geo. Wash. L. Rev. 56 (2014); see also Movsesian, *Severability in Statutes and Contracts*, 30 Ga. L. Rev. 41, 41–42 (1995) (collecting academic criticism of severability doctrine).

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have not sought to have it severed and stricken, and far from placing “unequal treatment” at the “heart of their suit,” they have never complained of unequal treatment as such. *Ante*, at 634. The plaintiffs point to the government-debt exception only to show that the government lacks a compelling interest in restricting their speech. It isn’t even clear the plaintiffs would have standing to challenge the government-debt exception. They came to court asserting a right to speak, not a right to be free from other speakers. Severing and voiding the government-debt exception does nothing to address the injury they claim; after today’s ruling, federal law bars the plaintiffs from using robocalls to promote political causes just as stoutly as it did before. What is the point of fighting this long battle, through many years and all the way to the Supreme Court, if the prize for winning is no relief at all?

A severance remedy not only fails to help the plaintiffs, it harms strangers to this suit. Just five years ago, Congress expressly authorized robocalls to cell phones to collect government-backed debts. Yet, today, the Court reverses that decision and outlaws the entire industry. It is highly unusual for judges to render unlawful conduct that Congress has explicitly made lawful—let alone to take such an extraordinary step without warning to those who have ordered their lives and livelihoods in reliance on the law, and without affording those individuals any opportunity to be heard. This assertion of power strikes me as raising serious separation of powers questions, and it marks no small departure from our usual reliance on the adversarial process.

Nor does the analogy to equal protection doctrine solve the problem. That doctrine promises equality of treatment, whatever that treatment may be. The First Amendment isn’t so neutral. It pushes, always, in one direction: against governmental restrictions on speech. Yet, somehow, in the name of vindicating the First Amendment, our remedial course today leads to the unlikely result that not a single

person will be allowed to speak more freely and, instead, more speech will be banned.

In an effort to mitigate at least some of these problems, JUSTICE KAVANAUGH suggests that the ban on government-debt collection calls announced today might be applied only prospectively. See *ante*, at 634, n. 13. But prospective decisionmaking has never been easy to square with the judicial power. See, e.g., *James B. Beam Distilling Co. v. Georgia*, 501 U.S. 529, 548–549 (1991) (Scalia, J., concurring in judgment) (judicial power is limited to “discerning what the law *is*, rather than decreeing . . . what it will *tomorrow* be”). And a holding that shields *only* government-debt collection callers from past liability under an admittedly unconstitutional law would wind up endorsing the very same kind of content discrimination we say we are seeking to eliminate.

Unable to solve the problems associated with its preferred severance remedy, today’s decision seeks at least to identify “harm[s]” associated with mine. Cf. *ante*, at 635 (opinion of KAVANAUGH, J.). In particular, we are reminded that granting an injunction in this case would allow the plaintiffs’ (unpopular) speech, and that could induce others to seek injunctions of their own, resulting in still more (unpopular) speech. But this “harm” is hardly comparable to the problems associated with using severability doctrine: Having to tolerate unwanted speech imposes no cognizable constitutional injury on anyone; it is life under the First Amendment, which is almost always invoked to protect speech some would rather not hear.

* * *

In the end, I agree that 47 U.S.C. § 227(b)(1)(A)(iii) violates the First Amendment, though not for the reasons JUSTICE KAVANAUGH offers. Nor am I able to support the remedy the Court endorses today. Respectfully, if this is what modern “severability doctrine” has become, it seems to me all the more reason to reconsider our course.

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COLORADO DEPARTMENT OF STATE *v.* BACA ET AL.
CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE TENTH CIRCUIT

No. 19–518. Argued May 13, 2020—Decided July 6, 2020

Held: The judgment of the Court of Appeals, which held that Colorado’s faithless elector law violates the Constitution, is reversed for the reasons stated in *Chiafalo v. Washington*, 591 U. S. 578 (2020).
935 F. 3d 887, reversed.

Philip J. Weiser, Attorney General of Colorado, argued the cause for petitioner. With him on the brief were *Eric R. Olson*, Solicitor General, *Grant T. Sullivan* and *Michael D. McMaster*, Assistant Solicitors General, *LeeAnn Morrill*, First Assistant Attorney General, and *Michael Kotlarczyk*, Assistant Attorney General.

Jason Harrow argued the cause for respondents. With him on the briefs were *L. Lawrence Lessig*, *Sumeer Singla*, *Daniel A. Brown*, *Hunter M. Abell*, *Jonah O. Harrison*, *J. Max Rosen*, and *Jason B. Wesoky*.*

*Briefs of *amici curiae* urging reversal were filed for the State of South Dakota et al. by *Jason R. Ravensborg*, Attorney General of South Dakota, and *Paul S. Swedlund*, Assistant Attorney General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Xavier Becerra* of California, *William Tong* of Connecticut, *Kathy Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Clare E. Connors* of Hawaii, *Lawrence Wasden* of Idaho, *Kwame Raoul* of Illinois, *Curtis T. Hill, Jr.*, of Indiana, *Tom Miller* of Iowa, *Daniel Cameron* of Kentucky, *Jeff Landry* of Louisiana, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Maura Healey* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Lynn Fitch* of Mississippi, *Eric S. Schmitt* of Missouri, *Timothy C. Fox* of Montana, *Doug J. Peterson* of Nebraska, *Aaron D. Ford* of Nevada, *Gordon MacDonald* of New Hampshire, *Gurbir S. Grewal* of New Jersey, *Hector Balderas* of New Mexico, *Letitia James* of New York, *Josh Stein* of North Carolina, *Wayne Stenehjem* of North Dakota, *Dave Yost* of

Per Curiam

PER CURIAM.

The judgment of the United States Court of Appeals for the Tenth Circuit is reversed for the reasons stated in *Chiafalo v. Washington*, 591 U. S. 578 (2020).

It is so ordered.

JUSTICE SOTOMAYOR took no part in the decision of this case.

JUSTICE THOMAS concurs in the judgment for the reasons stated in his separate opinion in *Chiafalo v. Washington*, 591 U. S. 578, 597–609 (2020).

Ohio, *Mike Hunter* of Oklahoma, *Ellen Rosenblum* of Oregon, *Josh D. Shapiro* of Pennsylvania, *Peter F. Neronha* of Rhode Island, *Alan Wilson* of South Carolina, *Herbert H. Slatery III* of Tennessee, *Sean D. Reyes* of Utah, *Thomas J. Donovan* of Vermont, *Mark R. Herring* of Virginia, *Patrick Morrissey* of West Virginia, *Josh L. Kaul* of Wisconsin, and *Bridget Hill* of Wyoming; for the Campaign Legal Center et al. by *Tobias S. Loss-Eaton*, *Paul M. Smith*, *Adav Noti*, and *David Kolker*; for the Eagle Forum Education & Legal Defense Fund by *Andrew L. Schlafly*; for the National Conference of Commissioners on Uniform State Laws by *James Bopp, Jr.*, *Richard E. Coleson*, *Peter F. Langrock*, *Daniel Robbins*, *Susan Kelly Nichols*, and *Timothy J. Berg*; for the Republican National Committee by *Michael E. Toner*, *Lee E. Goodman*, and *Stephen J. Obermeier*; for Robert W. Bennett by *J. Samuel Tenenbaum*, *Jeffrey T. Green*, and *Sarah O'Rourke Schrup*; for Mary Beth Corsentino et al. by *James G. Sawtelle* and *Christopher M. Jackson*; for Robert M. Hardaway by *Jennifer Gilbert*; and for Michael T. Morley by *Mr. Morley, pro se*.

Briefs of *amici curiae* urging affirmance were filed for the Independence Institute by *David B. Kopel* and *Joseph G. S. Greenlee*; for Jerry H. Goldfeder by *Mr. Goldfeder, pro se*; and for Michael L. Rosin et al. by *Peter K. Stris*, *Michael N. Donofrio*, and *Bridget C. Asay*.

Briefs of *amici curiae* were filed for Citizens for Self-Governance by *Rita M. Dunaway*; for the Colorado Democratic Party by *Paul R. Franke III*; for the Colorado Republican Committee by *Julian R. Ellis, Jr.*; for the Making Every Vote Count Foundation by *Jerrold J. Ganzfried*, *Reed E. Hundt*, and *Thea A. Cohen*; for Edward B. Foley by *Jessica Ring Amunson* and *Zachary C. Schauf*; for Vinz Koller by *Andrew J. Dhuey*; and for Derek T. Muller by *Ian Speir*.

Syllabus

LITTLE SISTERS OF THE POOR SAINTS PETER AND
PAUL HOME *v.* PENNSYLVANIA ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE THIRD CIRCUIT

No. 19–431. Argued May 6, 2020—Decided July 8, 2020*

The Patient Protection and Affordable Care Act of 2010 (ACA) requires covered employers to provide women with “preventive care and screenings” without “any cost sharing requirements,” and relies on Preventive Care Guidelines (Guidelines) “supported by the Health Resources and Services Administration” (HRSA) to determine what “preventive care and screenings” includes. 42 U.S.C. § 300gg–13(a)(4). Those Guidelines mandate that health plans provide coverage for all Food and Drug Administration approved contraceptive methods. When the Departments of Health and Human Services, Labor, and the Treasury (Departments) incorporated the Guidelines, they also gave HRSA the discretion to exempt religious employers, such as churches, from providing contraceptive coverage. Later, the Departments also promulgated a rule accommodating qualifying religious organizations that allowed them to opt out of coverage by self-certifying that they met certain criteria to their health insurance issuer, which would then exclude contraceptive coverage from the employer’s plan and provide participants with separate payments for contraceptive services without imposing any cost-sharing requirements.

Religious entities challenged the rules under the Religious Freedom Restoration Act of 1993 (RFRA). In *Burwell v. Hobby Lobby Stores, Inc.*, 573 U.S. 682, this Court held that the contraceptive mandate substantially burdened the free exercise of closely held corporations with sincerely held religious objections to providing their employees with certain methods of contraception. And in *Zubik v. Burwell*, 578 U.S. 403, the Court opted to remand without deciding the RFRA question in cases challenging the self-certification accommodation so that the parties could develop an approach that would accommodate employers’ concerns while providing women full and equal coverage.

Under *Zubik*’s direction and in light of *Hobby Lobby*’s holding, the Departments promulgated two interim final rules (IFRs). The first significantly expanded the church exemption to include an employer that

*Together with 19–454, *Trump, President of the United States, et al. v. Pennsylvania et al.*, on certiorari to the same Court.

“objects . . . , based on its sincerely held religious beliefs,” “to its establishing, maintaining, providing, offering, or arranging [for] coverage or payments for some or all contraceptive services.” 82 Fed. Reg. 47812. The second created a similar “moral exemption” for employers with sincerely held moral objections to providing some or all forms of contraceptive coverage. The Departments requested post-promulgation comments on both IFRs.

Pennsylvania sued, alleging that the IFRs were procedurally and substantively invalid under the Administrative Procedure Act (APA). After the Departments issued final rules, responding to post-promulgation comments but leaving the IFRs largely intact, New Jersey joined Pennsylvania’s suit. Together they filed an amended complaint, alleging that the rules were substantively unlawful because the Departments lacked statutory authority under either the ACA or RFRA to promulgate the exemptions. They also argued that the rules were procedurally defective because the Departments failed to comply with the APA’s notice and comment procedures. The District Court issued a preliminary nationwide injunction against the implementation of the final rules, and the Third Circuit affirmed.

Held:

1. The Departments had the authority under the ACA to promulgate the religious and moral exemptions. Pp. 675–683.

(a) As legal authority for both exemptions, the Departments invoke §300gg–13(a)(4), which states that group health plans must provide women with “preventive care and screenings . . . as provided for in comprehensive guidelines supported by [HRSA].” The pivotal phrase, “as provided for,” grants sweeping authority to HRSA to define the preventive care that applicable health plans must cover. That same grant of authority empowers it to identify and create exemptions from its own Guidelines. The “fundamental principle of statutory interpretation that ‘absent provision[s] cannot be supplied by the courts,’” *Rotkiske v. Klemm*, 589 U. S. 8, 14, applies not only to adding terms not found in the statute, but also to imposing limits on an agency’s discretion that are not supported by the text, see *Watt v. Energy Action Ed. Foundation*, 454 U. S. 151, 168. Concerns that the exemptions thwart Congress’ intent by making it significantly harder for interested women to obtain seamless access to contraception without cost sharing cannot justify supplanting the text’s plain meaning. Even if such concerns are legitimate, they are more properly directed at the regulatory mechanism that Congress put in place. Pp. 675–680.

(b) Because the ACA provided a basis for both exemptions, the Court need not decide whether RFRA independently compelled the De-

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partments' solution. However, the argument that the Departments could not consider RFRA at all is without merit. It is clear from the face of the statute that the contraceptive mandate is capable of violating RFRA. The ACA does not explicitly exempt RFRA, and the regulations implementing the contraceptive mandate qualify as "Federal law" or "the implementation of [Federal] law" under RFRA. § 2000bb-3(a). Additionally, this Court stated in *Hobby Lobby* that the mandate violated RFRA as applied to entities with complicity-based objections. And both *Hobby Lobby* and *Zubik* instructed the Departments to consider RFRA going forward. Moreover, in light of the basic requirements of the rulemaking process, the Departments' failure to discuss RFRA at all when formulating their solution would make them susceptible to claims that the rules were arbitrary and capricious for failing to consider an important aspect of the problem. Pp. 680–683.

2. The rules promulgating the exemptions are free from procedural defects. Pp. 683–687.

(a) Respondents claim that because the final rules were preceded by a document entitled "Interim Final Rules with Request for Comments" instead of "General Notice of Proposed Rulemaking," they are procedurally invalid under the APA. The IFRs' request for comments readily satisfied the APA notice requirements. And even assuming that the APA requires an agency to publish a document entitled "notice of proposed rulemaking," there was no "prejudicial error" here, 5 U. S. C. § 706. Pp. 683–684.

(b) Pointing to the fact that the final rules made only minor alterations to the IFRs, respondents also contend that the final rules are procedurally invalid because nothing in the record suggests that the Departments maintained an open mind during the post-promulgation process. The "open-mindedness" test has no basis in the APA. Each of the APA's procedural requirements was satisfied: The IFRs provided sufficient notice, § 553(b); the Departments "g[ave] interested persons an opportunity to participate in the rule making through submission of written data, views or arguments," § 553(c); the final rules contained "a concise general statement of their basis and purpose," *ibid.*; and they were published more than 30 days before they became effective, § 553(d). Pp. 684–687.

930 F. 3d 543, reversed and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and ALITO, GORSUCH, and KAVANAUGH, JJ., joined. ALITO, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 687. KAGAN, J., filed an opinion concurring in the judgment, in which BREYER, J., joined,

post, p. 704. GINSBURG, J., filed a dissenting opinion, in which SOTOMAYOR, J., joined, *post*, p. 710.

Solicitor General Francisco argued the cause for petitioners in No. 19–454. With him on the briefs were *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Christopher G. Michel*, *Benjamin W. Snyder*, *Sharon Swingle*, *Lowell V. Sturgill, Jr.*, and *Karen Schoen*. *Paul D. Clement* argued the cause for petitioner in No. 19–431. With him on the briefs were *Erin E. Murphy*, *Andrew C. Lawrence*, *Mark L. Rienzi*, *Eric C. Rassbach*, *Lori H. Windham*, and *Diana M. Verm.*

Michael J. Fischer, Chief Deputy Attorney General of Pennsylvania, argued the cause for respondents in both cases. With him on the brief were *Josh Shapiro*, Attorney General of Pennsylvania, and *Aimee D. Thomson* and *Jacob B. Boyer*, Deputy Attorneys General, *Gurbir S. Grewal*, Attorney General of New Jersey, *Glenn J. Moramarco*, Assistant Attorney General, and *Elspeth Hans* and *Eric L. Apar*, Deputy Attorneys General.†

†Briefs of *amici curiae* urging reversal in both cases were filed for the State of Texas et al. by *Ken Paxton*, Attorney General of Texas, *Jeffrey C. Mateer*, First Assistant Attorney General, *Kyle D. Hawkins*, Solicitor General, *Jason R. LaFond*, Assistant Solicitor General, and *Bethany C. Spare*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Derek Schmidt* of Kansas, *Daniel Cameron* of Kentucky, *Jeff Landry* of Louisiana, *Lynn Fitch* of Mississippi, *Eric Schmitt* of Missouri, *Timothy C. Fox* of Montana, *Douglas J. Peterson* of Nebraska, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Jason Ravnsborg* of South Dakota, *Herbert Slatery III* of Tennessee, *Sean Reyes* of Utah, and *Patrick Morrissey* of West Virginia; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Stuart J. Roth*, *Jordan Sekulow*, *Walter M. Weber*, *Francis J. Manion*, *Geoffrey R. Surtees*, *Edward L. White III*, and *Erik M. Zimmerman*; for the Catholic Association Foundation et al. by *Andrea Picciotti-Bayer*; for the Catholic Benefit Association by *L. Martin Nussbaum* and

Opinion of the Court

JUSTICE THOMAS delivered the opinion of the Court.

In these consolidated cases, we decide whether the Government created lawful exemptions from a regulatory re-

Ian Speir; for the Cato Institute et al. by *Ilya Shapiro*, *Josh Blackman*, and *Howard Slugh*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for Christian Business Owners Supporting Religious Freedom by *Erin Elizabeth Mersino*, *William Wagner*, and *Katherine Henry*; for the Christian Legal Society et al. by *Matthew T. Martens* and *Daniel P. Kearney, Jr.*; for Constitutional Law Scholars by *Miles E. Coleman*; for the First Liberty Institute by *Thomas R. McCarthy*, *Kelly J. Shackelford*, *Hiram S. Sasser III*, and *Michael D. Berry*; for the Foundation for Moral Law by *Matthew J. Clark*; for the Independent Women's Law Center by *David H. Thompson* and *Nicole Frazer Reaves*; for Inner Life Fund et al. by *James L. Hirsén*, *Deborah J. Dewart*, and *Tami Fitzgerald*; for the International Society for Krishna Consciousness, Inc., et al. by *Gene C. Schaerr* and *Erik S. Jaffe*; for the Knights of Columbus by *Eric N. Kniffin*; for the March for Life et al. by *Kristen K. Waggoner*, *John J. Bursch*, *David A. Cortman*, *Rory T. Gray*, and *Kevin H. Theriot*; for the New Civil Liberties Alliance by *Richard A. Samp* and *John J. Vecchione*; for Residents and Families of Residents at Homes of the Little Sisters of the Poor by *Dwight G. Duncan* and *Colbe Mazzarella*; for the United States Conference of Catholic Bishops et al. by *Alexander Dushku* and *R. Shawn Gunnarson*; for Women Scholars by *Helen M. Alvaré, pro se*; for Nicholas Bagley et al. by *Donald Burke*; for Douglas Laycock by *Scott A. Keller*; for Michael Stokes Paulsen et al. by *John D. Adams*, *Brian D. Schmalzbach*, and *John P. O'Herron*; and for 161 Members of Congress by *Blaine H. Evanson*.

Briefs of *amici curiae* urging affirmance in both cases were filed for the Commonwealth of Massachusetts et al. by *Maura Healey*, Attorney General of Massachusetts, *Elizabeth N. Dewar*, State Solicitor, and *Julia E. Kobick* and *Jon Burke*, Assistant Attorneys General, *Xavier Becerra*, Attorney General of California, *Michael J. Mongan*, Solicitor General, *Aimee Feinberg*, Deputy Solicitor General, *Kathleen Boergers*, Supervising Deputy Attorney General, *Karli Eisenberg*, Deputy Attorney General, and *Kristin A. Liska*, Associate Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows: *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Karl A. Racine* of the District of Columbia, *Clare E. Connors* of Hawaii, *Kwame Raoul* of Illinois, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Hector Balderas* of New Mexico, *Letitia James*